IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI, COURT-III

COMPANY APPLICATION NO. (CAA) - 80(ND)/2023

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF ARRANGEMENT

BETWEEN

M/s. COGENT E-SERVICES LIMITED

……. Demerged Company/Applicant No. 1

AND

M/s. COGENT ES LIMITED

…… Resulting Company/Applicant No. 2

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 05.02.2024

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Deepak Joshi, Adv.

ORDER

PER: BACHU VENKAT BALARAM DAS, MEMBER (JUDICIAL)

1. This is a 1st Motion Petition jointly filed by the Applicant Companies seeking approval of this Tribunal about the Scheme of Arrangement under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of the above Applicant Companies. It is represented that the registered office address of all the Applicant Companies is situated in New Delhi and therefore the subject matter of the said petition falls within the jurisdiction of this Tribunal. Ld. Counsel has given the brief description of the Applicant

Companies, which are as follows:

a) Applicant Company No. 1 namely M/s. Cogent E-Services Limited bearing U72300DL2004PLC126944 was incorporated on June 15, 2004, under the provisions of the Companies Act, 1956 as a Public Limited Company with the Registrar of Companies, NCT of Delhi & Haryana. The registered office of Applicant Company No. 1 is situated at Level 2, Elegance Tower, Old Mathura Road, Jasola, New Delhi-110025. The Authorized Share Capital of the Company is Rs. 12,00,00,000/- divided into 6,00,00,000 equity shares of Rs. 2/- each and the issued, subscribed and paid-up share capital of the Company is Rs. 9,70,50,000/- divided into 4,85,25,000 equity shares of Rs. 2/- each, fully paid up.

b) Applicant Company No. 2 namely M/s. Cogent ES Limited bearing CIN: U93090DL2018PLC332412 was incorporated on April 12, 2018 under the provisions of the Companies Act, 2013 as a Public Limited Company with the Registrar of Companies, NCT of Delhi & Haryana. The registered office of Applicant Company No. 2 is situated at C-652 Kh. No. 920, F/Floor, Chhatarpur Extension, C-Block, JVTS Gardens, New Delhi -110074. The Authorized Share Capital of the Company is Rs. 1,50,00,000/- divided into 15,00,000 equity shares of Rs. 10/- each and issued, subscribed and paid- up share capital of the Company is Rs. 80,50,000/- divided into 8,05,000 equity shares of Rs. 10/- each, fully paid up.

2. The Affidavits in support of the present petition have been sworn by Mr. Abhinav Singh and Mr. Pranjal Kumar both being the Directors of Applicant Company No. 1 and Applicant Company No. 2 are filed along with the petition.
3. The Board of Directors of the Demerged Company/ Applicant No. 1 Company and the Resulting Company/Applicant No. 2 Company have unanimously approved the scheme of arrangement in its meetings held on 20.09.2023.
4. The Applicant Companies have filed its Memorandum and Articles of Association inter alia delineating their object clauses as well as the certified true copy of the latest audited annual accounts of the Demerged Company/

Applicant No. 1 Company for the financial year ended on 31st March 2023. as required under section 232(2)(e) of the Companies Act, 2013.

5. The Applicant Companies have filed the true copy of the proposed Scheme of Arrangement and have outlined the benefit of the same, which are as follows:

a) *"The Demerged Company/Applicant No. 1 Company owns leasehold land and maintains the immoveable property situated at C-121, Sector 63, Noida, Gautam Buddha Nagar, Uttar Pradesh-201301, India. However, the Demerged Company/ Applicant No. 1 Company is not into the business of Real Estate activities and owning and maintaining the aforesaid Real Estate Business Undertaking is not cost efficient to the Demerged Company. The Demerged Company/ Applicant No. 1 Company is desirous of demerging its immoveable property situated at C-121, Sector 63, Noida, Gautam Buddha Nagar, Uttar Pradesh- 201301, India, a Real Estate Business undertaking and transfer to the Resulting Company/ Applicant No. 2 Company under the Scheme of arrangement.*

b) This demerger will help the Demerged Company/Applicant No.1 Company to focus on and expand its IT Business which enables businesses and brands to connect with their end customers, transform CX across all their touchpoints and channels, and improve response times, business outcomes and performance; and realigning and consolidating its real estate business undertaking in Resulting Company/Applicant No. 2 Company in efficient manner to build strong capability to effectively meet future challenges in competitive business environment.

c) This demerger will also help in realignment and consolidation of the real estate business undertaking in Resulting Company/Applicant No. 2 Company in efficient manner and building strong capability to effectively meet

future challenges in competitive business environment.

d) *This demerger will create synergies in operational process and creation of efficiencies by reducing time to market and benefiting customers as well as optimization of operation and capital expenditure*

e) *The scheme of arrangement will lead to increased competitive strength, cost reduction and efficiencies, productivity gains by pooling the financial, managerial and technical resources, personnel capabilities, skills, expertise and technologies thereby significantly contributing to future growth.*

6. Upon this Scheme becoming effective and without any further application, act or deed, in consideration for the transfer of and vesting of all the properties, assets and liabilities of the Demerged Undertaking of the Demerged Company/Applicant No. 1 Company into the Resulting Company/ Applicant No. 2 Company, the Resulting Company shall, without any further application, act or deed, issue and allot to the shareholders of the Demerged Company/Applicant No. 1 Company whose names appear in the register of members of the Demerged Company/Applicant No. 1 Company as on the record date or to such of their respective heirs, executors, administrators or other legal representatives or other successors in title as may be recognized by the Board of Directors of the Demerged Company/ Applicant No. 1 Company, shares in the share capital of the Resulting Company/ Applicant No. 2 Company in the following manner:

"1 (One) Equity Share of Rs. 10 (Rupee Ten) each at par in the Resulting Company/Applicant No.2 Company for every 1 (One) Equity Shares at Rs. 2 (Rupee Two) each held by them in the Demerged Company/Applicant No.1 Company."

Upon the Scheme becoming effective, the authorized share capital of the Resulting Company/ Applicant No. 2 Company will be increased by the Resulting Company to INR 10,00,00,000 (Rupees Ten Crores Only) by filing the requisite forms with the Government Authority under the 2013 Act. Upon

the scheme becoming effective and after the increase in the authorized share capital of the Resulting Company/Applicant No. 2 Company, the Resulting Company/ Applicant No. 2 Company shall issue Rs. 86,87,351/- (Rupees Eighty Six Lakh Eighty Seven Thousand Three Hundred and Fifty One Only) fresh equity shares having a face value of Rs. 10/- each.

7. The Demerged Company/Applicant No. 1 Company has total of 7 (Seven) shareholders collectively holding 4,85,25,000 equity shares having the face value of Rs. 2/- each fully paid up out of which 100% of the shareholders holding 4,85,25,000 equity shares having the face value of Rs. 2/- each fully paid up have given their consent to the proposed scheme of arrangement of the applicant companies in the Annual General Meeting of the Demerged Company/ Applicant No. 1 Company dated 25.09.2023. The Consent Letters of all the Shareholders along with the affidavit are filed along with the Petition.
8. The Demerged Company/Applicant No. 1 Company has 3 (Three) secured creditors amounting to Rs. 497.18 million as on 31.07.2023.
9. The Demerged Company/Applicant No. 1 Company has 10 unsecured creditors amounting to Rs. 1,27,05,078/- as on 31.07.2023. A total of 100% of the unsecured creditors of the Demerged Company/ Applicant No. 1 Company have given their consent by way of an affidavit and no objection to the present scheme. The Consent Letters of all the Unsecured Creditors along with the affidavit is filed along with the Petition.
10. The Resulting Company/ Applicant No. 2 Company has total of 7 (seven) shareholders collectively holding 8,05,000 equity shares having the face value of Rs. 10/- each fully paid up out of which 100% of the shareholders holding 8,05,000 equity shares having the face value of Rs. 10/- each fully paid up have given their consent to the proposed scheme of arrangement of the applicant companies in the Annual General Meeting of the Resulting Company/Applicant No.2 Company dated 25.09.2023. The Consent Letters of all the Shareholders along with the affidavit are filed along with the Petition.
11. The Resulting Company/Applicant No.2 Company has total of 4 (four) debenture holders collectively holding 22,133 compulsory convertible debentures having the face value of Rs. 10/- each fully paid up out of which 100% of the debenture holders holding 22,133 compulsory convertible

debentures having the face value of Rs. 10/- each fully paid up have given their consent by way of an affidavit and no objection to the present scheme. The Consent Letters of all the Debenture holders along with the affidavit are filed along with the Petition.

12. The Resulting Company/Applicant No. 2 Company has NIL secured and unsecured creditors as on 31.07.2023.

13. The Table showing the details of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies are as follows:

Company	**Demerged Company/ Applicant No. 1**	**Resulting Company/ Applicant No. 2**
No. of Equity Shareholders	7	7
Page No.	Pg 208-209	Pg 329-330
Consent Given	100%	100%
Page No.	Pg 210-264	Pg 331-373

Company	**Demerged Company/ Applicant No. 1**	**Resulting Company/ Applicant No. 2**
No. of Compulsory Convertible Debenture holders	Nil	4
Page No.	-	Pg 374-375
Consent Given	NA	100%
Page No.	-	Pg 376-383
No. of Secured Creditors	3	Nil
Page No.	Pg 265-266	Pg 384-385
Consent Given	100%	NA
Page No.	Pg 28-37	-
No. of Unsecured Creditors	10	Nil
Page No.	Pg 267-268	Pg 384-385
Consent Given	100%	NA
Page No.	Pg 269-288	-

14. Having heard the submissions made by Ld. Counsel and having perused the records as well as the documents placed on record, we allow the prayer for the dispensation from convening and holding of the meetings of the Equity

Shareholders of both the Applicant Companies and dispensation from convening and holding of the meetings of the Debenture Holder of the Resulting Company/Applicant No. 2 and dispensation from convening and holding of the meetings of the Unsecured Creditors of the Demerged Company/Applicant No. 1 and dispensation from convening and holding of the meeting of the Secured Creditors of the Demerged Company/Applicant No. 1.

15. Since the Shareholders of the Applicant Companies have given their consent to the proposed scheme of Arrangement, we direct that the meetings of the shareholders of the Applicant Companies be dispensed with.

16. Since the Unsecured Creditors of the Demerged Company/Applicant No.1 have given their consent to the proposed scheme of Arrangement, we direct that the meetings of the Unsecured Creditors of the Demerged Company/Applicant No.1 be dispensed with.

17. Since there are no secured and unsecured creditors of the Resulting Company/Applicant No. 2, hence, the question of convening meetings of the secured and unsecured creditors of the Resulting Company does not arise.

18. The prayer (a), (b), (c), (d), (f) and (g) sought in the present petition bearing **CA.CAA-80(ND)/2023** stands **allowed** on the aforesaid term and is accordingly disposed of.

19. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

20. Let copy of the order be served to all the parties.

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI, COURT-III

CA-408/2023
in
COMPANY APPLICATION NO. (CAA) - 80(ND)/2023

(Under Rule 11 of the NCLT Rules, 2016)

IN THE MATTER OF SCHEME OF ARRANGEMENT

BETWEEN

M/s. COGENT E-SERVICES LIMITED

……. Demerged Company/Applicant No. 1

AND

M/s. COGENT ES LIMITED

…… Resulting Company/Applicant No. 2

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

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CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Deepak Joshi, Adv.

ORDER

PER: BACHU VENKAT BALARAM DAS, MEMBER (JUDICIAL)

1. The Present Application is being filed under Rule 11 of the National Company Law Tribunal ("NCLT") Rules, 2016 by the Applicant Companies seeking the following reliefs:

   i. "This Hon'ble Tribunal be pleased to allow the present application by taking on record the following documents i.e.:

   a) Letter dated 29.09.2023 issued by Bank of Baroda granting consent to the proposed scheme of arrangement

   b) Letter dated 19.10.2023 issued by HDFC Bank Limited granting

consent to the proposed scheme of arrangement

c) Letter dated 13.10.2023 issued by ICICI Bank Limited granting consent to the proposed scheme of arrangement

ii. This Hon'ble Tribunal be pleased to pass appropriate order for dispensing with the requirement for convening and holding of meetings of the secured creditors of Demerged Company/ Applicant No. 1 Company as consents are received from 100% of the unsecured creditors;

iii. *Any other order/direction as this Hon'ble Tribunal may deem fit to pass."*

2. The Applicant Companies have preferred an application in the above captioned matter bearing number CA (CAA) No. 80/ND/2023 filed under Section 230- 232 of the Companies Act, 2013 for seeking exemptions from and/or seeking directions for convening/holding of the meetings of shareholders and creditors of the Applicant Companies to consider and approve the scheme of arrangement.
3. The Board of Directors of the Demerged Company/Applicant No. 1 Company has unanimously approved the scheme of arrangement in its meeting held on 20.09.2023.
4. The Demerged Company/Applicant No.1 Company has 3 Secured Creditors Applicant amounting to Rs. 497.18 million as on 31.07.2023. The 3 Secured Creditors are:

a) Bank of Baroda
b) HDFC Bank Limited
c) ICICI Bank Limited

5. The Applicant Company has submitted that on the date of filing of CA (CAA) No. 80/ND/2023, the consent or no-objection affidavit from the 3 Secured Creditors was in process and couldn't be filed with CA (CAA) No. 80/ND/2023 as the same was not received to the Applicant Company. The CA(CAA) No. 80/ND/2023 was filed on 27.09.2023. The 3 secured creditors have now given their consent or no-objection affidavits in favour of the Demerged Company/Applicant No.1 Company in respect of the proposed scheme of arrangement.
6. The consent letters from the above 3 secured creditors were neither in possession of the Applicant Companies nor in existence as on the date of

filing of the captioned application bearing CA (CAA) No. 80/ND/2023. Hence, at the time of filing, specific prayer was sought from this Tribunal to pass appropriate orders directing holding of a meeting of the secured creditors of the Demerged Company/Applicant No.1. However, in view of the consent letters dated 29.09.2023, 13.10.2023 and 19.10.2023 received from the 3 secured creditors (constituting 100% of the secured creditors) of the Demerged Company/Applicant No.1, it is now prayed by way of the present application that the Tribunal be pleased to direct dispensation from convening the meeting and publication of notice of the meeting of secured creditors of the Demerged Company/Applicant No. 1 Company.

7. Hence, the consent letters taken on record and the requirement for convening and holding of meetings of the Secured Creditors of Demerged Company/ Applicant No. 1 Company as consents are received from 100% of the unsecured creditor is dispensed with. Hence, **CA-408/2023 stands allowed accordingly.**

-Sd-

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)